

Barry Corporation Act, 1957

5 & 6 ELIZ. 2 Ch. xxxi

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CHAPTER xxxi

An Act to make further provision for the improvement health and local government of the borough of Barry and for other purposes. [31st July 1957.]

WHEREAS the borough of Barry (in this Act called “ the borough ”) is a borough under the government of the mayor aldermen and burgesses of the borough (in this Act called “ the Corporation ”):

And whereas it is expedient to make further provision with reference to the improvement health and local government of the borough:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

1. This Act may be cited as the Barry Corporation Act 1957. Short title.

PART I
—cont.
Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Streets.

Part IV.—Sanitation and buildings.

Part V.—Nuisances.

Part VI.—Parks cemeteries and other municipal property.

Part VII.—Public order and public safety.

Part VIII.—Finance rating etc.

Part IX.—Miscellaneous.

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Incorporation
of Lands
Clauses Acts.

3. The Lands Clauses Acts except sections 127 to 132 (which relate to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 and except the provisions with respect to the purchase and taking of lands otherwise than by agreement (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act:

Provided that the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be sufficient without the addition of the sureties mentioned in that section.

Interpreta-
tion.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires—

“ the Act of 1875 ” means the Public Health Act 1875;

“ the Act of 1933 ” means the Local Government Act 1933;

“ the Act of 1936 ” means the Public Health Act 1936;

“ the Act of 1947 ” means the Town and Country Planning Act 1947;

“ the borough ” means the borough of Barry;

“ claimed road ” means a county road in respect of which the Corporation have claimed under section 32 of the Local Government Act 1929 to exercise and are exercising the functions of maintenance and repair;

“ the commission ” means the British Transport Commission;

“ contravention ” includes a failure to comply and
“ contravene ” shall be construed accordingly;

“ the Corporation ” means the mayor aldermen and
burgesses of the borough;

- “ the council ” means the council of the borough;
- “ the county council ” means the county council of the administrative county of Glamorgan;
- “ county road ” has the same meaning as in Part III of the Local Government Act 1929;
- “ daily penalty ” means a penalty for each day on which an offence is continued after conviction;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the borough;
- “ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough;
- “ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Act of 1947 by the Lands Tribunal Act 1949 by the Town and Country Planning Act 1954 and by this Act;
- “ magistrates’ court ” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act 1952;
- “ the Minister ” means the Minister of Housing and Local Government;
- “ open space ” has the same meaning as in the Open Spaces Act 1906;
- “ signed plan ” means the plan marked “ In Parliament Session 1956-57 Barry Corporation Bill ” signed in triplicate by Sir Gordon Touche the chairman of the committee of the House of Commons to whom the Bill for this Act was referred one copy of which has been deposited in the Parliament Office of the House of Lords one in the Private Bill Office of the House of Commons and one with the town clerk at his office;
- “ statutory borrowing power ” includes a power of borrowing money conferred on the Corporation by or under any enactment except paragraph (a) of subsection (1) of section 215 of the Act of 1933;
- “ statutory security ” means any security in which trustees are for the time being authorised by law to invest trust moneys and any mortgage bond debenture debenture stock stock or other security created by a local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery;
- “ telegraphic line ” has the same meaning as in the Telegraph Act 1878;

PART I
—cont.

“ the town clerk ” “ the medical officer ” “ the treasurer ”
 “ the surveyor ” and “ the public health inspector ”
 mean respectively the town clerk the medical officer of
 health the treasurer the surveyor and any public health
 inspector of the borough.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

LANDS

Extension of
 power to
 acquire land by
 agreement and
 use disposal
 etc. thereof.

5.—(1) The Corporation may acquire by agreement (whether by way of purchase lease or exchange) any land whether situate within or without the borough for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough notwithstanding that the land is not immediately required.

(2) Section 163 of the Act of 1933 shall apply to any land acquired by the Corporation under this section.

(3) The Corporation may sell lease exchange or otherwise dispose of any such land as aforesaid in such manner and for such consideration and on such terms and conditions as they think fit (whether in consideration of the execution of works or of the payment of a capital sum or of an annual rent or of payment in any other form) and may on any such exchange pay or receive money for equality of exchange:

Provided that the Corporation shall not without the consent of the Minister sell lease exchange or otherwise dispose of any such land for a consideration less than the current market value of the land but a purchaser or lessee shall not be concerned to inquire whether such consent is necessary or has been obtained.

(4) Any land acquired under this section may until it is appropriated under section 163 of the Act of 1933 be used for the purpose of any of the functions of the Corporation and until it is so appropriated all expenses incurred by the Corporation in respect of the land shall be payable out of the general rate fund.

(5) (a) Subject to the provisions of paragraph (b) of this subsection section 166 of the Act of 1933 shall apply to capital money received by the Corporation in respect of the sale leasing exchange or other disposition of land under this section as it applies to capital money received in respect of a transaction under section 164 or section 165 of the Act of 1933.

(b) So much of subsection (1) of section 166 of the Act of 1933 as requires the approval of the Minister of the manner in which capital money may be applied towards the discharge of any debt of the Corporation shall not apply to capital money received in respect of the sale leasing exchange or other disposition of land under this section.

(6) Nothing in this section shall authorise the disposal of any land by the Corporation whether by sale lease exchange or other disposition in breach of any trust covenant or agreement binding upon the Corporation.

(7) (a) Section 158 of the Act of 1933 shall not apply to the acquisition of land or to land acquired by the Corporation and any land acquired by the Corporation under that section before the commencement of this Act shall be deemed to have been acquired under this section.

(b) Sections 164 and 165 of the Act of 1933 shall not apply to any land acquired by the Corporation under this section.

6. With respect to any land acquired under this Act the Corporation may if they think fit— Powers of leasing.

(a) accept a surrender of any lease of the land granted by them or their predecessors in title and grant either to the lessee or tenant under the surrendered lease or to any other person a new lease of all or any of the land leased by the surrendered lease;

(b) grant reversionary leases of all or any of the said land;

(c) in any such lease give to the lessee or tenant or intended lessee or tenant on such terms and conditions as the Corporation think fit an option to purchase the fee simple in reversion or other the reversionary interest of the Corporation in all or any of the land leased or agreed to be leased.

7. On selling any land the Corporation—

(a) may reserve to themselves all or any part of the water rights or other rights or easements belonging thereto and may make the sale subject to such reservation accordingly; Reservation of easements etc. by Corporation.

(b) may make the sale subject to such other reservations special conditions restrictions and provisions with respect to the exercise of noxious trades or the deposit or discharge of manure sewage or other impure matter or otherwise as they think fit.

PART II
—cont.
Development
of land.

8.—(1) The Corporation may (with the consent of the Minister) lay out and develop any lands acquired by them under section 5 (Extension of power to acquire land by agreement and use disposal etc. thereof) of this Act and any other land for the time being belonging to them and not required for the purpose for which it was acquired and may on any such land erect and maintain houses restaurants refreshment rooms shops offices industrial buildings garages warehouses and other buildings and construct sewer drain pave channel and kerb streets:

Provided that nothing in this section shall apply to land acquired by the Corporation under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

(2) The Corporation may use or dispose of the building or other materials of any houses or structures on any land acquired or appropriated by them which they deem it necessary or desirable to pull down.

(3) In this section the expression “industrial building” includes a building used or designed or suitable for use for the carrying on of any process for or incidental to any of the following purposes namely:—

- (a) the making of any article or of part of any article; or
- (b) the altering repairing ornamenting finishing cleaning washing packing or canning or adapting for sale or breaking up or demolition of any article; or
- (c) without prejudice to the foregoing paragraphs the getting dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine;

being a process carried on in the course of trade or business and for the purposes of this definition the expression “article” means an article of any description including a ship or vessel.

PART III

STREETS

Rounding or
splaying off
corners at
street
junctions.

9.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of street byelaws are approved by them they may for the purposes of safety by notice require that the corners formed at the junction of the new street with another street (whether existing or intended but not being a trunk road) shall be rounded or splayed off in such manner as may be specified in the notice.

(2) Any such notice—

- (a) shall be given to the person by whom or on whose behalf the plan and sections were deposited; and

(b) shall be binding on successive owners of the land to which it relates.

(3) The Corporation shall pay compensation to any person injuriously affected by the exercise of powers conferred by this section and in default of agreement the amount thereof shall be determined by arbitration in accordance with the provisions of the Acquisition of Land (Assessment of Compensation) Act 1919.

(4) If any person lays out or constructs a new street otherwise than in compliance with a notice in respect of the street under this section he shall be liable to a penalty not exceeding twenty pounds and the Corporation may do such work as may be necessary to comply with the notice and recover the expenses of so doing from that person.

(5) This section shall have effect subject to the provisions of the Land Charges Act 1925 with respect to the avoidance of any such notice for want of registration as a local land charge.

(6) This section shall not apply to a county road (other than a claimed road) except with the consent of the county council.

10.—(1) Subject to the provisions of this section the Corporation may vary the relative widths of the carriageway and footway or footways in any street in the borough being a highway repairable by the inhabitants at large. Variation of width of carriageways and footways.

(2) The Corporation shall not exercise the powers of this section in relation to—

(a) a trunk road without the consent of the Minister of Transport and Civil Aviation; or

(b) a county road (other than a claimed road) without the consent of the county council.

(3) At least twenty-one days before commencing any work under this section which will materially reduce the width of the carriageway or any footway of a classified road the Corporation shall send notice of the proposed work to the Minister of Transport and Civil Aviation.

(4) The Corporation shall not exercise the powers of this section in relation to so much of any street as is situate upon a bridge over any railway or dock property or upon the approaches to any such bridge without the consent in writing of the railway or dock undertakers concerned:

Provided that such consent shall not be unreasonably withheld and any question whether it is unreasonably withheld shall be determined by the Minister of Transport and Civil Aviation.

11.—(1) Subject to the provisions of this section the Corporation may enter into and carry into effect agreements with persons having a legal interest in land adjoining any street in the Adjustment of boundaries of streets.

PART III
—cont.

borough not being a trunk road or a county road (other than a claimed road) for the adjustment of the boundary of the street.

(2) For the purposes of this section the Corporation—

(a) may exchange land including land forming the site of the street for other land and pay or receive money for equality of exchange; and

(b) shall be deemed to be the owners of the land forming the site of the street and shall be entitled to convey any such land in accordance with the agreement.

(3) As from the date of any such exchange as aforesaid all public rights over the part of any such street so exchanged shall be extinguished.

(4) No such agreement shall be entered into until the expiration of one month from the date on which notice giving particulars of the proposed agreement has been published in some local newspaper circulating in the borough.

(5) During the said period of one month any four ratepayers may appeal to a magistrates' court against the proposal to enter into the agreement.

(6) Where the street is a claimed road the county council shall have the same right of appeal as any four ratepayers have under the last foregoing subsection.

(7) Nothing in this section shall be taken to dispense with the consent of any government department to any appropriation exchange or other disposition of any land of the Corporation in any case in which the consent of that department would have been required if this Act had not been passed.

(8) In this section the expression "ratepayer" means a person who is liable to any rate in respect of property in the borough entered in any valuation list and includes an occupier of such property who pays rent inclusive of rates.

(9) (a) Where pursuant to this section the Corporation enter into an agreement with a person having a legal interest in land adjoining any street for the conveyance to that person of the site of any part of the street and immediately before the date on which the site ceases to be part of the street there was under in upon over along or across such site any telegraphic line belonging to or used by the Postmaster-General the Postmaster-General shall continue to have the same powers in respect of that line as if such site had remained part of the street but nothing in Part I of the Public Utilities Street Works Act 1950 shall have effect in relation to those powers:

Provided that if any person in whom such site is vested desires that such telegraphic line should be altered paragraphs (1) to (8) of section 7 of the Telegraph Act 1878 shall apply to the alteration

and accordingly shall have effect subject to any necessary modifications as if references therein to undertakers included references to the said person desiring the alteration.

(b) As between the Corporation and the Postmaster-General nothing in the foregoing paragraph shall affect the operation of Part II of the Public Utilities Street Works Act 1950 or the rights of the Postmaster-General and the Corporation thereunder.

12.—(1) In any street in the borough not being a highway Urgent repairs of private streets.
repairable by the inhabitants at large the Corporation may execute such repairs as are in their opinion urgently required to prevent or remove danger to persons or vehicles in the street and may themselves pay the cost of the repairs out of the general rate fund:

Provided that the cost of the repairs executed in any street in any period of three consecutive years under this section shall not exceed fifty pounds for each one hundred yards of the length of the street.

(2) The exercise by the Corporation of their powers under this section shall not prejudice their powers under the provisions of any enactment relating to private streets for the time being in force in the borough.

13.—(1) The Corporation may on the occasion of any public Decorations festivity provide decorations in streets and cause flag-poles in streets. and pylons to be erected in any street in the borough for the purpose of displaying decorations and may for that purpose provide sockets or slots in or under the surface of any such street.

(2) If any person wilfully removes any decorations flag-pole pylon socket or slot erected or provided under this section he shall be liable to a penalty not exceeding five pounds.

(3) The Corporation shall not exercise the powers of this section in—

- (a) a trunk road without the consent of the Minister of Transport and Civil Aviation; or
- (b) a county road (other than a claimed road) without the consent of the county council; or
- (c) any street belonging to or repairable by the commission without the consent of the commission.

14.—(1) The Corporation may remove and store any furniture Removal of articles goods or materials which may have been placed or dropped furniture etc. (whether accidentally or otherwise) in or upon any street in the from streets. borough and which—

- (a) may have remained there for more than forty-eight hours; or
- (b) are likely to cause an obstruction;

PART III
—cont.

and the Corporation shall not be liable for any loss or damage caused by such removal or storage.

(2) If the Corporation remove any furniture articles goods or materials under the powers of this section—

(a) they shall if and as soon as it is reasonably practicable so to do notify the person whom they believe to be the owner thereof; and

(b) they shall not exercise any power to sell any such furniture articles goods or materials whether under section 276 of the Act of 1936 or otherwise until after the expiration of fourteen days from the date of such notification or three months from the day on which they removed the furniture articles goods or materials whichever shall first occur.

(3) Among the articles to which this section applies there shall be included crates or other containers containing or intended to contain bottles.

Removal of
vehicles from
parking
places.

15.—(1) It shall be the duty of the owner and of the driver or of any other person in control or in charge of a broken-down vehicle in a parking place (not being in a street) provided by or under the control of the Corporation within the borough to remove or to take all reasonable steps to secure the removal of such vehicle as soon as practicable.

(2) The Corporation on being satisfied that the owner or driver or person in control or in charge of a broken-down vehicle in any such parking place has failed to take all necessary steps to remove such vehicle or to cause the same to be removed may remove such vehicle or use the services of any other person to remove the same in such manner and to such place as the Corporation think fit.

(3) When the Corporation remove any broken-down vehicle or use the services of any other person to remove the same—

(i) the expenses of and incidental to such removal shall be recoverable summarily as a civil debt from the owner of the vehicle;

(ii) neither the Corporation nor any person whose services are used by them shall be liable to any action or demand for the recovery of any alleged damage to such vehicle or otherwise in respect of the removal thereof.

(4) If the Corporation remove any broken-down vehicle under the powers of this section—

(a) they shall if and as soon as it is reasonably practicable so to do notify the registered owner of the vehicle for

the purposes of the Road Vehicles (Registration and Licensing) Regulations 1955 or any other regulation having the same effect for the time being in force; and

PART III
—cont.

- (b) they shall not exercise any power to sell any such vehicle whether under section 276 of the Act of 1936 or otherwise until after the expiration of twenty-one days from the date of such notification or three months from the day on which they removed the vehicle whichever shall first occur.

(5) In this section the expression "broken-down vehicle" means any mechanically propelled vehicle which from any cause whatsoever has become incapable of movement by its motive power and includes any vehicle appearing to the Corporation to have been abandoned whether so incapable of movement or not.

PART IV

SANITATION AND BUILDINGS

16.—(1) Where the council—

- (a) resolve to construct a sewer in a street or part of a street in the borough being a street or part which is repairable by the inhabitants at large and has not been previously sewered; and
- (b) include in the resolution a declaration that the construction of the sewer will in the opinion of the council increase the value of premises fronting adjoining or abutting on the street or that part thereof;

Recovery of
expenses of
sewerage
public
highway.

then the provisions of the First Schedule to this Act shall have effect as respects the apportionment and recovery by the Corporation of the expenses incurred in constructing the sewer:

Provided that all liabilities under the said schedule in respect of the sewer shall cease at the expiration of three years from the date when the resolution becomes operative if the construction of the sewer is not then complete.

(2) Notice of any such resolution shall be published by the Corporation in a local newspaper circulating in the borough and the resolution shall become operative for the purposes of this section and the said schedule on the date of such publication.

(3) Either—

- (a) a copy of any such newspaper containing any such notice; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part

PART IV
—cont.

of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

Recovery of expenses of sewerage prospective street.

17. Where land in the borough in which a length of sewer has been constructed after the passing of this Act at the expense of the Corporation becomes a street (whether repairable by the inhabitants at large or not) then the provisions of the First Schedule to this Act shall have effect as respects the apportionment and recovery by the Corporation of the expenses incurred in constructing the length of sewer:

Provided that where compensation due to the owner of any land in respect of damage sustained by reason of the construction therein of the length of sewer has been diminished by setting off any sum on account of the enhancement in value of the land by reason aforesaid this section shall not apply to so much of the length of sewer as has been constructed in that land.

Prevention of evasion of liabilities under last two foregoing sections.

18.—(1) If on a complaint by the Corporation to a magistrates' court it is proved to the satisfaction of the court—

(a) that by reason of any transfer of land any part of any premises (hereinafter in this section referred to as "the severed part")—

(i) has ceased to be included in premises fronting adjoining or abutting on a street or part of a street to which the last but one foregoing section of this Act applies; or

(ii) has been excluded from premises which have subsequently become premises fronting adjoining or abutting on a street to which the last foregoing section of this Act applies or has ceased to be included in premises fronting adjoining or abutting on such a street; and

(b) that the transfer was intended for the purpose of evading liability under the First Schedule to this Act imposed by the last but one foregoing or the last foregoing section as the case may be;

then the court may make such order under the following provisions of this section as it thinks just for the purpose of ensuring that the said liability is not evaded by reason of the transfer.

(2) Any such order may direct—

(a) that for the purposes of paragraph 2 of the said schedule the severed part shall be deemed to be premises fronting

adjoining or abutting on the street or part of the street in question and shall be deemed to have had at the relevant date within the meaning of the said schedule such frontage on the street as may be specified in the order;

(b) that for the purposes of sub-paragraph (a) of paragraph 6 of the said schedule the site of a new building erected on the severed part and the land occupied therewith shall be deemed to have such frontage on the street or part of the street as may be specified in the order;

(c) that any such amendment shall be made of any entry in the register of local land charges as may be specified in the order including an amendment taking effect as from a past date.

(3) Any order made under paragraph (a) of subsection (2) of this section may also direct that any premises from which the severed part has been excluded or in which it has ceased to be included shall not be deemed to be premises fronting adjoining or abutting on the street or part of the street or shall be deemed to have such frontage as may be specified in the order.

(4) Orders made under any provision of subsection (2) of this section may be made on separate complaints made by the Corporation at different times.

(5) For the purposes of this section the expression “transfer” includes any disposal of land whether by way of sale lease exchange gift or otherwise.

19. Section 24 of the Act of 1936 shall have effect in its application to the borough as if the following proviso were substituted for the proviso to subsection (1) of that section:—

Recovery of
cost of
maintaining
public sewers

“ Provided that unless in the opinion of the medical officer or the public health inspector immediate action is necessary notice of the work proposed to be undertaken shall not less than seven days before the work is commenced be given to the owners of any premises known by the local authority to be served by the length of sewer in question and the local authority shall consider any representations as to the need for and the reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice ”.

20. For the purpose of facilitating the disposal of sewage the powers of the Corporation under section 157 of the Act of 1875 shall extend to the making of byelaws requiring any person constructing a new street in the borough to provide separate sewers for foul water drainage and surface water drainage respectively.

Separate
sewers for
foul water
and surface
water.

PART IV
—cont.
Delegation
of power to
examine and
test drains
etc.

21.—(1) In lieu of section 48 of the Act of 1936 the following provisions of this section shall if the council by resolution so determine have effect in the borough for such period as may be specified in the resolution either as respects the whole of the borough or as respects such part or parts thereof as may be so specified.

(2) Where it appears to the medical officer or the public health inspector that there are reasonable grounds for believing—

- (a) that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance; or
- (b) that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water;

he may examine its condition and for that purpose may apply any test other than a test by water under pressure and if he deems it necessary open the ground.

(3) If on examination the convenience drain sewer or cesspool is found to be in proper condition the Corporation shall as soon as possible reinstate any ground which has been opened by the medical officer or the public health inspector and make good any damage done by him.

Summary
power to
remedy
stopped-up
drains etc.

22.—(1) If it appears to the medical officer or the public health inspector that on any premises in the borough a drain private sewer water-closet or soil pipe is stopped up he may by notice require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with the Corporation may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served:

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

- (a) whether any requirement contained in a notice served under this section or any work done by the Corporation was reasonable; and
- (b) whether the expenses incurred by the Corporation in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case:

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

23.—(1) If any drain or private sewer in the borough—

(a) is not sufficiently maintained and kept in good repair to the satisfaction of the Corporation; and

(b) can in the opinion of the Corporation be sufficiently repaired at a cost not exceeding fifty pounds;

the Corporation may after giving not less than seven days' notice to the person or persons concerned cause the drain or sewer to be repaired and subject to the next following subsection recover the expenses of so doing so far as they do not exceed fifty pounds from the person or persons concerned in such proportions (if there is more than one such person) as the surveyor may determine:

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(2) In any proceedings under this section the court may inquire—

(a) whether the drain or sewer in question required repair and whether the work done by the Corporation was reasonable; and

(b) whether any apportionment made by the surveyor was fair;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just:

Provided that the court shall not revise any apportionment unless it is satisfied that all persons affected thereby have had due notice of the proceedings and an opportunity of being heard.

(3) In this section the expression "person concerned" in relation to a drain or private sewer means any person owning any premises drained by means of the drain or sewer and also in the case of a sewer the owner thereof.

(4) The Corporation shall not exercise the powers of this section in relation to any highway drain from time to time vested in and directly maintained by the county council.

24. For the purposes of section 44 of the Act of 1936 any part of a building in the borough being a part occupied as a separate dwelling shall be treated as a separate building:

Provided that where any part or parts of a building occupied as aforesaid has or have been let for occupation without the

Power to
repair drains
and private
sewers.

Closet accom-
modation for
separate
dwellings.

PART IV
—cont.

consent in writing of the owner of the building the person so letting that part or those parts shall be deemed to be the owner thereof for the purposes of the said section 44.

Power to
cleanse drains
etc.

25. The Corporation may on the application of the owner or occupier of any premises in the borough undertake the cleansing or repair of any drains water-closets sinks or gullies in or connected with the premises and may make and recover from the person so applying such charge if any for so doing as they think fit.

Abandoned
drains to be
cut off.

26.—(1) Where after the passing of this Act any person shall—

- (a) reconstruct any drain which communicates with any sewer or other drain;
- (b) lay such drain in a new position; or
- (c) on the occasion of the execution of any works to or in connection with such drain permanently discontinue the use of such drain;

such person shall cause any drain or portion of drain thereby rendered unnecessary to be cut off and sealed at each end.

(2) Any person who knowingly contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Provision of
bathrooms.

27.—(1) Where plans of a house are in accordance with building byelaws deposited with the Corporation they may reject the plans if they do not show that the house will be provided with a bathroom containing a fixed bath.

(2) If the Corporation reject the plans for non-conformity with this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been rejected on account of such non-conformity.

Ruinous and
dilapidated
buildings
and neglected
sites.

28.—(1) Paragraphs (b) and (ii) of subsection (1) of section 58 of the Act of 1936 and so much of subsection (2) of that section as relates to those paragraphs shall cease to have effect in the borough and the following provisions of this section shall have effect in lieu thereof.

(2) Where a building in the borough is by reason of its ruinous or dilapidated condition seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner thereof—

- (a) to execute such works of repair or restoration; or

- (b) if he so elects to take such steps for demolishing the building or any part thereof and removing any rubbish or other material resulting from or exposed by the demolition;

as may be necessary in the interests of amenity.

(3) Where rubbish or other material resulting from or exposed by the demolition or collapse of a building in the borough is lying on the site of the building or on any land occupied with the building and by reason thereof the site or land is in such a condition as to be seriously detrimental to the amenities of the neighbourhood the Corporation may by notice require the owner of the site or land to take such steps for removing the rubbish or material as may be necessary in the interests of amenity.

(4) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section and in their application to a notice given under subsection (2) of this section—

(a) subsection (2) of the said section 290 shall be construed as requiring the notice to indicate both the nature of the works of repair or restoration and the works of demolition and removal of rubbish or material; and

(b) subsection (6) of the said section 290 shall be construed as authorising the Corporation to execute subject to the provisions of that subsection at their election either the works of repair or restoration or the works of demolition and removal of rubbish or material.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or material removed by the Corporation under this section.

(6) Before serving notice under this section in respect of any building from time to time included in any list compiled or approved by the Minister under section 30 of the Act of 1947 the Corporation shall consult with the county council.

(7) In this section the expression “building” includes any structure.

29.—(1) Where it appears to the Corporation that any building or part of a building in the borough is in such a condition as to be dangerous to persons in such building or in any adjoining premises or using any street upon which such building abuts the Corporation may until—

- (a) any order made by a magistrates' court under section 58 of the Act of 1936 in respect of such building shall have been complied with or executed; or

Recovery of expenses of watching etc. dangerous and dilapidated buildings.

PART IV
—cont.

(b) the building shall have been taken down secured or repaired in pursuance of section 75 of the Towns Improvement Clauses Act 1847 as incorporated in the Act of 1875;

employ and pay watchmen and do all such other acts as may be necessary to watch such building and may recover the expenses reasonably incurred by them in so doing from the owner of the building:

Provided that the Corporation shall forthwith give to the owner of any building notice that they propose to employ and pay watchmen or to do any other act in the exercise of the powers of this section to watch such building.

(2) In this section the expression “building” includes any structure.

Dangerous
structures.

30.—(1) Where it appears to the surveyor that a structure in the borough or any part of such structure is in such a state as to require treatment for the removal of any immediate danger the surveyor or any officer authorised by the Corporation may on behalf of and at the expense of the Corporation take such steps as may be necessary to remove the immediate danger.

(2) Before exercising their powers under this section in respect of a structure the Corporation (except in cases of urgency) shall give notice of their intention so to do to the owner and occupier of the structure and in cases of urgency shall give such notice as soon as may be practicable after taking the steps referred to in subsection (1) of this section:

Provided that the Corporation shall not be required to give notice to an owner or occupier unless his name and address are known to them.

(3) (a) Where for the purpose of removing any danger the Corporation have in the exercise of their powers under this section damaged or demolished any building the owner thereof may apply to a magistrates’ court to determine whether the Corporation were reasonably justified in so doing.

(b) In any case in which the court determines that the Corporation were not so justified the owner of such building shall be entitled to be paid compensation by the Corporation.

(c) The amount of any compensation payable under paragraph (b) of this subsection shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

(4) In this section the expression “structure” includes any building or wall or other structure and anything affixed to or projecting from any building or wall or other structure.

(5) Nothing in this section shall authorise the Corporation to interfere with the operation of the commission's railways or docks or the apparatus used in connection therewith without the consent of the commission.

31.—(1) Any luminous tube sign or other similar apparatus requiring the transforming of electrical energy to a higher voltage fitted externally or internally on or in any premises in the borough other than such apparatus as is fitted internally in any premises and is attended when in operation shall be provided with a cut-off switch on the lower voltage side of the transforming apparatus. Firemen's switches for luminous tube signs.

(2) Before any apparatus to which subsection (1) of this section applies is fitted on or in any premises in the borough the owner or occupier of the premises shall at least fourteen days before the work of fitting the apparatus is begun give notice to the Corporation that such apparatus is about to be fitted indicating the position in which it is proposed that the cut-off switch required under subsection (1) of this section will be placed and in the case of any such apparatus to be fitted internally in any premises shall inform the Corporation of the pattern of the cut-off switch which it is proposed to provide.

(3) The owner or occupier of the premises in respect of which notice is given under subsection (2) of this section shall take into consideration any representations which may be made by the Corporation within ten days of the receipt of such notice in order to secure that the cut-off switch shall be placed in a position in which it will be readily recognisable by and accessible to firemen and in the case of any such apparatus to be fitted internally in any premises the work of fitting the apparatus shall not be begun until the pattern and position of the cut-off switch have been approved by the Corporation:

Provided that where the pattern and position of any cut-off switch to be provided in connection with such apparatus to be fitted internally in any premises complies with the provisions of the Institution of Electrical Engineers' regulations the pattern and position shall be deemed to have been approved by the Corporation.

(4) The provisions of this section shall not prejudice or affect the requirements of the Electricity (Supply) Regulations 1937 or any regulations or other provisions amending or replacing the same.

(5) This section shall not apply to premises in respect of which a licence under the Cinematograph Acts 1909 and 1952 is for the time being in force:

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—cont.

Provided that where any luminous tube sign to which but for this subsection subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or occupier thereof shall before such apparatus is fitted give notice to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

Attachment
of street
lamps
brackets etc.

32.—(1) Subject to the provisions of this section the Corporation may affix to any building in the borough such lamps brackets pipes electric lines and apparatus (in this section called “attachments”) as may be required for the purposes of street lighting.

(2) The Corporation shall not affix attachments to a building under this section without the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to the appropriate authority who may either allow the attachments subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or disallow the attachments.

(3) Where any attachments have been affixed to a building under this section and the person who gave the consent or who was the owner of the building when the attachments were allowed by the appropriate authority ceases to be the owner thereof the subsequent owner may give to the Corporation notice requiring them to remove the attachments and subject to the provisions of this subsection the Corporation shall comply with the requirement within three months after the service of the notice:

Provided that where in the opinion of the Corporation any such requirement is unreasonable they may apply to the appropriate authority who may either annul the notice subject to such conditions (if any) as to rent or otherwise as the authority thinks fit or confirm the notice subject to such extension (if any) of the said three months as the authority thinks fit.

(4) Where any attachments have been affixed to a building under this section the owner of the building may require the Corporation at their own expense temporarily to remove the attachments where necessary during any reconstruction or repair of the building.

(5) If the owner of any building suffers damage by or in consequence of the affixing to the building of any attachments under the powers of this section he shall be entitled to be paid by the Corporation compensation to be determined in case of dispute in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919.

(6) In this section the following expressions have the meanings hereby assigned to them:—

PART IV
—cont.

“appropriate authority” means a magistrates’ court except that in relation to a building mentioned in the first column of the following table it means the Minister specified in relation thereto in the second column of that table:—

1	2
Building forming part of an aerodrome licensed pursuant to an order made under the Civil Aviation Act 1949 or any enactment repealed by that Act.	The Minister of Transport and Civil Aviation.
Building which— (i) is subject to a building preservation order made under section 29 of the Act of 1947; or (ii) is included in a list of buildings of special architectural or historic interest compiled or approved under section 30 of the last-mentioned Act; or (iii) is alleged by the owner thereof to be a building of special architectural or historic interest.	The Minister.
Building owned by a highway authority or railway canal dock or inland navigation undertakers.	The Minister of Transport and Civil Aviation.
Building owned by electricity or gas undertakers ...	The Minister of Power.
Building owned by statutory water undertakers ...	The Minister.

“building” includes a structure and a bridge or aqueduct over a street;

“owner” means—

(a) in relation to a building occupied under a tenancy for a term of years whereof five years or more remain unexpired and not forming part of such an aerodrome as aforesaid the occupier of the building;

(b) in relation to a building forming part of such an aerodrome as aforesaid the person having control of the aerodrome;

(c) in relation to any other building the person who is receiving the rack-rent or who would receive the rack-rent if the building were let at a rack-rent;

and the expression “owned” shall be construed accordingly.

PART V

NUISANCES

As to deposit
of rubbish.

33.—(1) If it appears to the Corporation that there is on any vacant site in the borough an accumulation of rubbish which is unsightly or otherwise detrimental to the amenities of the neighbourhood and ought to be removed the Corporation may serve a notice on the owner or occupier of such vacant site requiring him to remove it and if such owner or occupier cannot be found or fails to comply with such notice the Corporation may themselves do what they consider necessary to remove the accumulation and to prevent recurrence thereof and may recover the expenses incurred by them in so doing from the person by whose act or default the accumulation of rubbish was caused.

(2) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied to this Act that section shall apply to all rubbish removed by the Corporation under this section.

(3) This section shall not apply to rubbish accumulated on any land in the borough in the course of building operations or a work of demolition so long as the operations are or the work is proceeding and for a reasonable period thereafter.

(4) In this section “rubbish” means any rubble metal wood glass china earthenware tin cardboard paper flock rags or other refuse and any organic matter (whether waste or dead animal) but does not include any such materials or things which have been accumulated for and are reasonably required for the carrying on of any business.

Noise
nuisance.

34.—(1) Any excessive or unreasonable or unnecessary noise which is prejudicial to health or a nuisance shall be a statutory nuisance for the purposes of Part III of the Act of 1936:

Provided that—

(a) in any proceedings brought by virtue of this section under the said Part III in respect of a noise occasioned in the course of any trade or business it shall be a defence for the defendant to prove that he has used the best practicable means for preventing or mitigating the noise having regard to the cost and to other relevant circumstances;

(b) a justice shall not entertain a complaint under section 99 of the said Act with respect to a noise unless the complaint is made by not less than three occupiers of premises within hearing of the noise.

(2) Nothing in this section shall apply to a noise occasioned by the exercise by railway undertakers of statutory powers conferred in relation to their railway undertaking.

(3) Nothing in this section shall affect the power of the Corporation to make byelaws under section 249 of the Act of 1933.

PART VI

PARKS CEMETERIES AND OTHER MUNICIPAL PROPERTY

35.—(1) The Corporation may in any park pleasure ground or Boating pools. open space provided by them or under their management and control provide a boating pool.

(2) The Corporation may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any boating pool under this section and references in the following provisions of this section to a boating pool so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such building or boating pool is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

- (a) themselves manage any boating pool provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit; or
- (b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) The powers of the Corporation under subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 with respect to a piece of water in a park or pleasure ground provided by them shall be extended so as to be exercisable with respect to any boating pool provided under this section.

36.—(1) Subsection (2) of section 44 of the Public Health Acts Pleasure Amendment Act 1890 (which empowers an urban authority to boats. provide and let or license persons to provide and let pleasure boats on any lake or piece of water in a park or pleasure ground) shall in its application to the Corporation have effect as if—

- (a) the words “and operate” were inserted therein after the word “provide”; and
- (b) the words “on any lake or piece of water in any such park or pleasure ground” were omitted therefrom.

(2) The Corporation may employ and pay boatmen and other persons and may provide and maintain landing stages mooring places and boathouses in connection with pleasure boats provided or operated by them.

(3) Nothing in the said subsection (2) of section 44 of the Public Health Acts Amendment Act 1890 as amended in its application to the Corporation by this section shall empower the Corporation to provide operate and let for hire pleasure boats for use on the waters of the Bristol Channel beyond an area bounded by imaginary straight lines commencing at a point on the borough boundary at Hayes Point thence proceeding in a

PART VI
—cont.

southerly direction for a distance of sixteen thousand and thirty feet thence in a westerly direction for a distance of eighteen thousand six hundred and twenty feet and thence in a northerly direction for a distance of twelve thousand one hundred and sixty feet to and terminating at the borough boundary at Porthkerry Beach approximately two thousand feet west of Bullcliff Rocks.

Golf courses.

37.—(1) The Corporation may provide a golf course and for that purpose may by agreement acquire whether by way of purchase lease or exchange land whether situated within or without the borough.

(2) The Corporation may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any golf course under this section and references in the following provisions of this section to a golf course so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

- (a) themselves manage any golf course provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit; or
- (b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) The Corporation may—

- (a) at any such golf course provide and sell refreshments of all kinds subject to the provisions of all enactments relating thereto;
- (b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (c) grant upon such terms and conditions and for such period as they think fit the right so to provide and sell refreshments;
- (d) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of intoxicating liquor or tobacco at any such golf course.

(5) The Corporation may make byelaws for regulating the use of golf courses provided under this section whether within or without the borough and the conduct of persons using them or resorting thereto.

Roller-skating
rinks.

38.—(1) The Corporation may provide a roller-skating rink and for that purpose may utilise any part of a park recreation ground or open space provided by them or under their management and control:

Provided that the part of any park recreation ground or open space utilised under this section shall not exceed one-eighth of the area of such park recreation ground or open space or one acre whichever be the less.

(2) The Corporation may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any roller-skating rink under this section and references in the following provisions of this section to a roller-skating rink so provided shall include references to any buildings provided or works executed under this subsection and to any thing with which any such roller-skating rink or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

- (a) themselves manage any roller-skating rink provided under this section making such reasonable charges for the use thereof or admission thereto as they think fit; or
- (b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(4) The Corporation may—

- (a) at any such roller-skating rink provide and sell refreshments of all kinds (other than intoxicating liquor) subject to the provisions of all enactments relating thereto;
- (b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;
- (c) grant upon such terms and conditions and for such period as they think fit the right so to provide and sell refreshments as aforesaid;
- (d) by themselves or any person appointed by them in that behalf apply for and hold licences for the sale of tobacco at any such roller-skating rink.

39.—(1) The Corporation may in on or over any of the premises belonging to the Corporation or (with the consent of the owner or occupier) any other premises in the borough arrange on such terms and conditions as they may think fit for the provision of illuminations and may for such purposes provide fit up maintain and operate all such lamps fittings equipment apparatus and appurtenances and do all such things as may be necessary or requisite in connection therewith: Power to provide illuminations.

Provided that the Corporation shall on being so requested by the commission cease any such illuminations under the

PART VI
—cont.

powers of this section which in the opinion of the commission will hinder the ready interpretation of any railway signal or navigation light or so as otherwise to render hazardous the use of any railway or dock.

(2) The provisions of section 32 (Attachment of street lamps brackets etc.) of this Act shall extend and apply to such brackets lamps fittings equipment apparatus and appurtenances as may be required for the purposes of this section as if they had been mentioned in that section.

(3) Any illuminations and any lamps fittings equipment apparatus or appurtenances provided fitted up maintained or operated under this section shall be so provided or fitted up and so maintained and operated as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

Transmission
of enter-
tainments.

40.—(1) The Corporation may provide erect maintain and use such apparatus and conveniences as they may consider necessary for the purpose of transmitting any concert entertainment or public meeting or any part thereof from a building or park or pleasure ground belonging to the Corporation at which such concert entertainment or public meeting is provided or held to any other building or park or pleasure ground at which concerts or entertainments may be provided by the Corporation or to any street in the borough and for that purpose may erect and maintain posts and wires in any street:

Provided that nothing in this section shall affect the exclusive privileges conferred upon the Postmaster-General by the Telegraph Act 1869 or exempt the Corporation or any other body or person from any obligation to obtain any licence under the Wireless Telegraphy Act 1949 and any electrical apparatus posts or wires which may be erected under this section shall be so constructed maintained and used as to prevent interference with—

- (a) any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line; or
- (b) the working of any wire or line used for the purpose of electric signalling communication on railways or the electrical control of railways.

(2) Without prejudice to the provisions of the Public Utilities Street Works Act 1950 the Corporation shall not exercise the powers of this section without the consent of the commission—

- (a) in or upon any bridge carrying a street over any railway or the approaches thereto or under a bridge carrying a

railway over any street except where the portion of the street over or under such bridge or approach is a highway repairable by the inhabitants at large; or

- (b) in any street belonging to and repairable by the commission and forming the approach to any station dock wharf or depot of the commission.

41. The Corporation may make byelaws with respect to the management control and use of any gymnasium provided by them and any such byelaws may in addition to providing for the imposition of penalties empower any officer of the Corporation to exclude or remove from any gymnasium so provided any person contravening any such byelaws. Byelaws with respect to gymnasiums.

42. The Corporation may let on hire tropical and sub-tropical foliage plants for the decoration of public halls owned by the Corporation and may make such charges therefor as they may think fit. As to hire of plants for decoration.

43.—(1) The Corporation may agree with any person in consideration of the payment of a capital sum by him to maintain for a period fixed by the agreement a grave or tombstone in a burial ground or crematorium provided by the Corporation and the following provisions shall apply in relation to any such agreement:— Agreements to maintain graves and tombstones.

(a) The said sum shall subject to the next following paragraph and any other enactment authorising its application in some other manner be invested in statutory securities;

(b) If and in so far as the cost of maintaining the grave or tombstone in accordance with the agreement exceeds in any year the interest received on the said sum the cost shall be defrayed out of the capital of the said sum;

(c) At the expiration of the period fixed by the agreement for the maintenance of the grave or tombstone the Corporation may apply the capital of the said sum or so much thereof as has not been expended under the last foregoing paragraph in any manner in which capital money may properly be applied by them under any enactment;

(d) The amount of the capital of the said sum and the interest thereon shall be shown separately in the accounts of the Corporation relating to the burial ground or crematorium.

(2) In this section—

“ burial ground ” includes a cemetery;

PART VI
—cont.

- “grave” includes a grave space niche or urn;
“tombstone” includes a monument or other memorial of a deceased person.

Extension of
power to
maintain
burial grounds.

44.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

- (a) to put and keep in order any tombstone therein;
- (b) to level any grave therein or remove any tombstone or movable memorial on any grave therein or the railings surrounding any grave or tombstone therein.

(2) Before exercising the powers conferred by paragraph (b) of the foregoing subsection the Corporation shall give notice of their intention to do so—

- (a) by publishing the notice once in each of two successive weeks in a local newspaper circulating in the borough with an interval between each publication of not less than six clear days;
- (b) by displaying the notice in a conspicuous position in the burial ground; and
- (c) by sending the notice by ordinary post to the person for the time being registered in the register maintained by the Corporation for the purpose as the grantee of the exclusive right of burial in the grave to his last known address as recorded in such register.

(3) The said notice shall—

- (a) contain brief particulars of the Corporation's proposals and if necessary specify an address at which full particulars of the proposals can be obtained;
- (b) specify the date on which it is intended that the Corporation shall begin to carry out the proposals which shall not be earlier than the fourteenth day after the last publication of the notice in a newspaper as aforesaid or the twenty-first day after the notice is first displayed in the burial ground as aforesaid or where notice is served under paragraph (c) of subsection (2) of this section the twenty-first day after such service; and
- (c) state the effect of the next following subsection.

(4) (a) If notice of objection to the proposals and of the ground thereof is given to the Corporation before the date so specified and is not withdrawn before the expiration of fourteen days from that date the proposals to which the objection relates shall not be carried out without the consent of the Minister.

(b) In any case where the Corporation apply to the Minister for such consent as aforesaid they shall inform the person who has given notice of objection of the Minister's decision in the

matter by sending to him by ordinary post to the address stated by him in the said notice of objection a notification of such decision.

PART VI
—cont.

(5) Unless within three months after the first publication of the notice required by paragraph (a) of subsection (2) of this section or where notice is served under paragraph (c) of that subsection within three months after such service whichever is the later any tombstones memorials or railings removed under this section are claimed the Corporation may put them to such use as they think appropriate or destroy them.

(6) Where any tombstone is removed under this section the Corporation may erect at their own expense in substitution a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause to be made a record of each tombstone and memorial removed under this section and deposit a copy of the record with the Registrar-General.

(8) Where a faculty or licence of a consistory court is required for any work nothing in this section shall relieve the Corporation of their obligation to obtain such a faculty or licence and where the Corporation obtain a faculty or licence for any work subsections (2) to (5) of this section shall not apply to that work.

(9) In this section—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“tombstone” includes a kerb and any fixed memorial to the dead.

PART VII

PUBLIC ORDER AND PUBLIC SAFETY

45.—(1) For the prevention of noise or of danger obstruction or annoyance to persons boating or bathing or using the seashore the Corporation may make byelaws— Further powers to make byelaws as to boats.

(a) requiring the fitting of effectual silencers on boats propelled by internal combustion engines;

(b) prohibiting regulating or controlling the keeping or landing of boats on such parts of the seashore as may be specified in the byelaws.

(2) The said byelaws may also provide for charging such fee as may be prescribed by the byelaws for any licence or permission to keep a boat on any part of the seashore owned by or let to the Corporation.

(3) Byelaws made under this section may contain different provisions for different classes or descriptions of boats.

PART VII
—cont.

(4) No byelaw made under this section shall—

- (a) affect any right or privilege of owners of boats engaged in the fishing industry which may exist at the time of the making of the byelaw; or
- (b) prevent the owner of any part of the seashore or any person with his consent exercising any rights which he could have exercised if the byelaw had not been made; or
- (c) in the case of a byelaw made under paragraph (a) of subsection (1) of this section apply to any boat which is ordinarily kept outside the borough and is not required to be licensed by the Corporation.

Licensing
of boatmen
and pleasure
boats.

46. As from the appointed day section 94 of the Public Health Acts Amendment Act 1907 shall in its application to the borough have effect as if the following subsection were substituted for subsection (3) thereof:—

“(3) No person shall—

- (a) let for hire any pleasure boat or pleasure vessel not so licensed or at any time during the suspension of the licence for the boat or vessel; or
- (b) carry or permit to be carried passengers for hire in any pleasure boat or pleasure vessel unless the boat or vessel and the boatman in charge thereof and the navigator are so licensed or at any time during the suspension of the licence for the boat or vessel or the boatman or navigator:

Provided that this subsection shall not be taken to require a person to be licensed as a boatman who takes on hire a pleasure boat or pleasure vessel for purposes other than for profit”.

Amendment
of section 154
of Act of 1936.

47. Section 154 of the Act of 1936 shall in its application to the borough have effect as if after the words “or any article whatsoever” in subsection (1) of that section there were inserted the words “or any animal fish bird or other living thing”.

PART VIII

FINANCE RATING ETC.

Power to
borrow.

48.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow—

- (a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority the sum requisite for the payment of the costs charges and expenses of this Act.

(2) The Corporation shall repay the moneys borrowed under paragraph (b) of the preceding subsection within such period as the Corporation may determine not exceeding five years from the date of borrowing.

(3) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section for the repayment of any money borrowed shall as respects that money be the fixed period for the purposes of the said Part IX.

49.—(1) In addition to any form of borrowing the Corporation Power to may exercise any statutory borrowing power by the issue of issue bonds. bonds (in this Act referred to as “bonds”) in accordance with the provisions of this Act.

(2) Where the Corporation raise money by the issue of bonds the following provisions of the Act of 1933 shall apply as if the money had been raised by borrowing on mortgage under that Act and bonds were mortgages within the meaning of that Act:—

Section 209 (Notice of trusts);

Section 210 (Receipts on behalf of joint holders and infants);

Section 211 (Appointment of receiver);

Section 212 (Repayment of moneys borrowed on mortgage);

Section 213 (Sinking fund);

Section 214 (Adjustments of sinking fund).

(3) The provisions set out in the Second Schedule to this Act shall have effect with regard to bonds.

(4) Bonds shall be deemed to be loan capital or funded debt within the meaning of section 8 of the Finance Act 1899.

(5) The provisions of section 115 of the Stamp Act 1891 (which relates to the composition for stamp duty) shall with the necessary adaptations apply in the case of bonds as if those bonds were stock or funded debt within the meaning of that section.

50.—(1) The Corporation may transfer to their general loans Use of account any amount standing to the credit of any fund accumu- money in- lated for the redemption of debt reserve renewals repairs reserve and depreciation contingency insurance superannuation capital or other funds.

PART VIII
—cont.

other similar fund (hereinafter referred to as “ the lending fund ”) and not for the time being required and such amount shall be used or applied by the Corporation—

- (a) in the redemption of securities issued by the Corporation (other than stock or housing bonds) or the repayment of any moneys borrowed by the Corporation; and
- (b) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation.

(2) The moneys of the general loans account not so used or applied or about to be so used or applied within a reasonable period shall be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the general loans account and the moneys of the general loans account shall not except with the consent of the Minister be used otherwise than as provided in this subsection.

(3) The amounts transferred under subsection (1) of this section shall be transferred to the lending fund as and when required for meeting the obligations for which that fund was established.

(4) There shall be paid to the general rate fund an amount equal to the interest on any amount transferred under subsection (1) of this section and for the time being not transferred at such rate per centum per annum as may be determined by the Corporation to be equal as nearly as may be to the average rate of interest payable by the Corporation on their current borrowings and if the provisions relating to the lending fund require the interest on investments of the fund to be added thereto there shall be credited to the lending fund in the accounts of the general rate fund an amount equal to the interest paid as aforesaid unless the amount standing to the credit of the lending fund amounts to the prescribed maximum of that fund.

Application
of general
rate fund for
certain
purposes.

51.—(1) If in respect of any financial year the moneys received by the Corporation on account of the revenue of any of the Corporation undertakings (including the interest and other annual proceeds received by the Corporation in that year on the investments representing or forming part of any authorised fund provided in connection with the undertaking) shall exceed the moneys expended or applied by the Corporation in respect of that undertaking properly chargeable to revenue the Corporation (if they think fit) may in respect of that year apply out of the general rate fund a sum not exceeding the amount of such excess to any of the following purposes:—

- (a) in the reduction of capital moneys borrowed for the purpose of the undertaking;

- (b) in the renewal construction extension or improvement of any works and conveniences for the purposes of the undertaking or in payment of any expenses in respect of the undertaking which might otherwise have been defrayed out of capital moneys;
- (c) in providing a reserve fund in respect of the undertaking by setting aside such an amount as the Corporation may from time to time think reasonable and (unless the amounts so set aside are applied in any other manner authorised by any enactment) investing the same in statutory securities until the reserve fund so provided amounts to the maximum reserve fund for the time being prescribed by the Corporation in respect of that undertaking.

(4) Any reserve fund which has been provided in respect of any of the Corporation undertakings shall be carried to and form part of any reserve fund provided under this section in respect of such undertaking.

(3) Any reserve fund provided under this section may be applied—

- (a) in making good to the general rate fund any deficiency at any time happening in the income of the Corporation from the undertaking in connection with which it is formed; or
- (b) in meeting any extraordinary claim or demand at any time arising against the Corporation in respect of that undertaking; or
- (c) in or towards the payment of the cost of acquiring land for or renewing improving or extending any works forming part of the undertaking or otherwise for the benefit thereof;

and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

52. Notwithstanding anything contained in any enactment or in any rule of law or otherwise to the contrary where it is agreed between the Corporation and the person for the time being entitled to any mortgage granted by the Corporation to extend the time for the repayment of the principal moneys secured by such mortgage or to alter the rate of interest payable by the Corporation on the principal moneys so secured and for the time being not repaid or both to extend such time and to alter such rate of interest effect may be given thereto by an endorsement in writing under the hand of such person and of the town clerk or his duly authorised representative endorsed on the deed by which

As to extensions of time for repayment of and alteration of interest on mortgages.

PART VIII
—cont.

such mortgage was originally granted and the provisions of any such endorsement shall be deemed to be incorporated in the said deed and shall as from the date specified in such endorsement operate and take effect accordingly.

Power to
advance
money in
certain cases.

53.—(1) Where any person—

- (a) is by virtue of any enactment for the time being in force in the borough required by any local authority or any statutory undertakers to execute any works or to do any other thing; or
- (b) desires or proposes to execute any works or to do any other thing which by virtue of any such enactment any local authority or statutory undertakers could require him to do;

the Corporation may advance money to such person for the purpose of enabling or assisting him to execute such works or to do such thing.

(2) Before any advance is made under this section the repayment of the moneys proposed to be advanced shall be secured to the satisfaction of the Corporation and any instrument securing such repayment shall—

- (a) fix the rate of interest to be paid being a rate not less than the rate for the time being in operation under the Small Dwellings Acquisition Acts 1899 to 1923 as amended by section 92 of the Housing Act 1935; and
- (b) fix the period within which the advance is to be repaid being a period not exceeding thirty years from the date of the advance.

(3) In this section the expression “local authority” has the meaning assigned to it by section 305 of the Act of 1933.

Recovery of
rates from
persons
removing.

54.—(1) If a justice is satisfied on complaint by any rate collector or other authorised officer of the Corporation that any person is quitting or about to quit any premises and has failed to pay on demand any general rate or any water rent water rate or water charge which may be due from him to the Corporation and intends to evade payment of the same the justice may in addition to issuing a summons for non-payment of the same issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the person in default to meet the claim and to detain them until the complaint is determined upon the return of the summons.

(2) In this section the expression “water charge” includes a meter rent.

55.—(1) Where the owner of any hereditament has agreed with the occupier thereof that the owner shall pay the general rate charged on such hereditament the owner shall be liable to pay to the Corporation so much of any payment in respect of rent received by him from the occupier as shall represent the proportion of rate included in such payment and so much of such payment may on proof of such agreement be recovered by the Corporation from the owner in the same manner and subject to the same conditions under and subject to which rates are recoverable from occupiers of rated hereditaments. The remedy of the Corporation under this section shall be in addition and without prejudice to their other remedies for the recovery of rates.

PART VIII
—cont.
Recovery of
rates from
certain
owners.

(2) This section shall not apply to any hereditament to which subsection (1) of section 11 of the Rating and Valuation Act 1925 applies by virtue of a resolution of the council.

(3) In this section the expression “owner” in relation to a hereditament means the person who is entitled to receive the rent payable in respect thereof.

56. For the purpose of section 15 of the Rating and Valuation Act 1925 the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear if such rates are not paid within two months after lawful demand in writing has been made for the same.

As to
recovery of
rates from
tenants and
lodgers.

57. The provisions of section 59 of the Rating and Valuation Act 1925 relating to the sending or service of demand notes shall apply to demand notes for any charges made in connection with any undertaking department or service of the Corporation.

Service of
demand notes.

58.—(1) Any water rent water rate or water charge payable to the Corporation may be demanded and collected together with the general rate and the same books may be used for the said rent rate or charge and the general rate.

Collection
and recovery
of water
rates and
charges.

(2) Notwithstanding the provisions of any other enactment any water rent water rate or water charge recoverable by the Corporation in a magistrates’ court may (without prejudice to any other right or remedy of the Corporation) be recoverable in the same manner and subject to the same provisions in respect of such recovery as the general rate.

(3) There may be included in one and the same complaint information summons or warrant or in any schedule thereto two or more sums payable to the Corporation by any one person in respect of the water rent water rate and water charge and general rate payable by him.

(4) In this section “water charge” includes a meter rent.

PART VIII

—cont.

False
statements
to obtain
rebate etc.

59. If any person for the purpose of obtaining for himself or any other person a rebate in the rent of any house belonging to the Corporation or a reduction in the amount of any other payment due to the Corporation under the Rating and Valuation Act 1925 or the Rating and Valuation (Miscellaneous Provisions) Act 1955 or for the purpose of obtaining any advance from the Corporation by way of mortgage under the Small Dwellings Acquisition Acts 1899 to 1923 or the Housing Acts 1936 to 1952—

- (a) knowingly makes to the Corporation or any of their employees a false statement or false representation relating to his or that other person's ability to pay the rent or make the payment or relating to the application for the advance; or
- (b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or any of their employees any document or information relating as aforesaid which he knows to be false in a material particular;

he shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding four months or to both such fine and imprisonment.

Expenses of
public
entertainment
etc.

60. The Corporation may make reasonable payments for or in connection with—

- (a) the provision of public entertainment on the occasion of or otherwise in connection with public ceremony or rejoicing;
- (b) the arrangement and conduct of ceremonies relative to or arising out of any statutory functions of the Corporation;
- (c) refreshments for members of the council and representatives of local authorities and other bodies or for other persons attending conferences or meetings convened by the council and held at the town hall or other public hall in the borough;
- (d) the presentation of the freedom of the borough to persons whom the council may resolve to admit as honorary freemen.

Subscriptions
to local
government
and scientific
bodies and
other
expenses.

61. The Corporation may pay reasonable subscriptions (whether annually or otherwise) to the funds of any association formed for the purpose of consultation as to matters affecting the Corporation or of interest to them as a corporation or of discussion of such matters or to the funds of any scientific or other society or body (not carrying on business for profit) which is or the members of which are engaged in investigations or the keeping of records of use or value to the Corporation and any reasonable expenses of the attendance of any members or

officers of the Corporation at or of persons nominated by the Corporation to attend conferences or meetings of any such association society or body and the cost of purchasing reports and contributing towards the expenses of the proceedings of any such conferences or meetings:

PART VIII
—cont.

Provided that the payments to be made by the Corporation under this section shall not in any financial year exceed the equivalent of one-half of the product of a penny rate as ascertained or estimated for the purpose of subsection (2) of section 9 of the Rating and Valuation Act 1925.

62. Whenever under any enactment (other than the Act of 1936) the Corporation on the application or in consequence of the default of the owner or occupier of any premises execute any work the cost of which is payable by such owner or occupier the Corporation may include in and recover as part of such cost such additional sum as they think fit not exceeding five per centum of the cost of the works in respect of their establishment charges.

Power to
charge in
respect of
establishment
expenses.

PART IX

MISCELLANEOUS

63.—(1) In addition to their power under section 31 of the National Assistance Act 1948 to make contributions to voluntary organisations whose activities consist in or include the provision of recreation or meals for old people the Corporation may themselves provide meals for old people whether in their own homes or in centres provided by the Corporation under subsection (2) of this section for the purpose of promoting the welfare of old people in the borough.

Provision of
meals for
old people.

(2) The Corporation may provide maintain and manage in premises provided by them in the borough centres for the provision or distribution of meals for old people.

(3) The Corporation may recover from persons availing themselves of the services provided under this section such reasonable charges as they may determine.

(4) The Corporation shall in exercising their powers under this section be subject to all enactments and rules of law relating to the supply and distribution of food and the provision of meals for the public by private persons.

64.—(1) The Corporation may—

Catering
establishments.

(a) on any of the lands coloured pink on the signed plan of which for the time being they may be the owners or occupiers erect maintain and equip restaurants refreshment rooms and catering establishments; and

PART IX
—cont.

(b) in any of the premises erected on any of the lands referred to in paragraph (a) of this subsection sell and supply or enter into any agreement or arrangement with any persons for the sale and supply of or let any rights (exclusive or otherwise) of selling and supplying refreshments of all kinds subject to the provisions of all enactments relating thereto:

Provided that nothing in this subsection shall override the terms or conditions of any lease or agreement relating to lands occupied by the Corporation but not owned by them.

(2) The Corporation or any person appointed by them in that behalf may apply for and hold licences for the sale of intoxicating liquors or of tobacco for the purposes of this section:

Provided that it shall be a condition of any on-licence for the sale of intoxicating liquor granted on an application made under this subsection that the same is not sold except while the premises in respect of which such licence is granted are open and being used and to persons bona fide using the said premises in connection with any concerts displays exhibitions amusements dances entertainments meetings or conferences which may be arranged to take place on the premises or for the purpose of consumption on the premises with a meal.

Information centres.

65. The powers of the Corporation under section 134 of the Local Government Act 1948 shall extend to any information concerning the borough and its neighbourhood.

Power to publish bulletins etc.

66. In connection with their powers under the Public Libraries Acts 1892 to 1919 the Corporation may publish and sell or dispose of bulletins journals periodicals and leaflets and documents of historical or literary interest having a local connection.

Prizes for garden and allotment competitions.

67. The Corporation may expend on the provision of prizes in connection with any competition which they may hold relating to their tenants' gardens or to allotments provided by the Corporation such sum as they may think fit not exceeding in any one year the sum of one hundred pounds.

Hire of chairs.

68. The Corporation may let chairs on hire to organisers of exhibitions shows and other functions within the borough. The Corporation may make such charges for the hire of chairs as they may think fit.

Corporation vehicles in processions.

69. The Corporation may enter vehicles belonging to them in carnival processions in the borough and for that purpose may decorate or cause to be decorated any such vehicle:

Provided that the sum to be expended by the Corporation in any one financial year in exercise of the powers of this section shall not exceed the sum of one hundred pounds.

PART IX
—cont.

70. Section 164 of the Housing Act 1936 shall in its application to the Corporation have effect as if at the end of subsection (2) of the said section there were inserted the following proviso:—

Amendment
of section 164
of Housing
Act 1936.

“ Provided that for the purposes of this subsection a document shall be deemed to be signed by the clerk to a local authority or his lawful deputy if a facsimile of the signature of either of such officers by whatever process reproduced is affixed to such document ”.

71. The Corporation may enter into and carry into effect agreements with the owners of documents books or papers of historic or other interest for the custody and exhibition by the Corporation of such documents books or papers.

Custody of
ancient
documents.

72. The Corporation may provide and maintain robes of office and headdresses for the use of the mayor aldermen and councillors of the borough:

Robes of
office.

Provided that the robes and headdresses provided by the Corporation under the powers of this section shall remain the property of the Corporation.

73. The Corporation may in any premises belonging to or occupied by them provide and maintain weighing-machines for ascertaining the weight of persons and may charge for the use thereof.

Provision of
weighing-
machines.

74. Notwithstanding anything contained in the Public Libraries Acts 1892 to 1919 the powers of the Corporation under those Acts in relation to any library provided by them under those Acts shall include—

Return of
library books.

- (i) the power to prescribe the period or periods being not less than fourteen days within which any book borrowed from such library must be returned thereto;
- (ii) the power to recover from any person who fails within such prescribed period to return to the said library any book so borrowed such reasonable sum as the Corporation may prescribe not exceeding one penny in respect of each day or sixpence in respect of each week in which he so fails to return such book together with any expenses incurred by the Corporation in sending to such person notices in respect of such book;
- (iii) the power to prohibit any such person from borrowing any other book from the said library or from any other

PART IX
—cont.

library provided by the Corporation under the said Act until such person has paid any such sum as is due to the Corporation under paragraph (ii) of this section.

PART X

GENERAL

Confirming
authority for
byelaws.

75. As respects byelaws made under this Act the confirming authority for the purposes of section 250 of the Act of 1933 shall be the Minister except that in the case of byelaws made under section 35 (Boating pools) section 37 (Golf courses) and section 45 (Further powers to make byelaws as to boats) the confirming authority shall be the Secretary of State.

Local inquiries.

76.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry and for that purpose the definition of the expression “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section the expression “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

Appointed
day.

77.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page or part

of a page of any such newspaper bearing the date of its publication and containing any such notice;

PART X
—cont.

shall be evidence of the publication of the notice and of the date of the publication.

78. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation.

79.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a magistrates' court under any enactment in this Act as it applies with respect to appeals to a court of summary jurisdiction under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act involves the execution of any work or the taking of any action then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action.

80. Section 265 of the Act of 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act.

Protection of
members and
officers of
Corporation
from personal
liability.

81.—(1) The sections of the Act of 1936 mentioned in Part I of the Third Schedule to this Act shall have effect as if references therein to that Act included a reference to this Act.

Application
of general
provisions of
Act of 1936.

(2) The sections of the Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included a reference to the following Parts of this Act (that is to say):—

Part III (Streets);

Part IV (Sanitation and buildings);

Part V (Nuisances).

82. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in

Saving for
powers of
Treasury.

PART X
—cont.

compliance with the provisions of any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for
trusts etc.

83. Except as otherwise expressly provided nothing in this Act shall authorise the Corporation to exercise any power conferred upon them by or under this Act to use for any purpose any land or building held managed or controlled by them in such a manner—

- (a) as to be at variance with any trust subject to which such land or building is held managed or controlled without an order of the High Court or of the Charity Commissioners or of the Minister of Education or (where the trust instrument reserves to the donor or any other person the power to vary the trust) without the consent of the donor or that other person; or
- (b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by or granted to them without the consent of the donor grantor lessor or other person entitled in law to the benefit of the covenant or condition.

Works below
high-water
mark.

84. Nothing in this Act shall authorise the execution of any works on over or under tidal lands below high-water mark of ordinary spring tides except in accordance with plans and sections approved by the Minister of Transport and Civil Aviation and subject to such conditions and restrictions as the Minister of Transport and Civil Aviation may prescribe before such work is begun.

Saving for
town and
country
planning.

85. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

For protection
of certain
electricity
undertakers.

86. For the protection of the undertakers the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers concerned apply and have effect:—

- (1) In this section unless the subject or context otherwise requires—

“apparatus” means electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to or maintained by either of the undertakers and includes any works constructed for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under over across along or upon;

“ position ” includes depth;

“ undertakers ” means—

the Central Electricity Authority;

the South Wales Electricity Board:

- (2) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Corporation shall so exercise those powers as not to obstruct or render less convenient (so far as is reasonably practicable) the access to any apparatus:—

Section 8 (Development of land);

Section 13 (Decorations in streets);

Section 40 (Transmission of entertainments):

- (3) Not less than twenty-eight days before the Corporation in the exercise of the powers of section 9 (Rounding or splaying off corners at street junctions) of this Act require the addition to the carriageway of a street of any portion of a footway or grass margin or garden in which any apparatus is situate the Corporation shall give to the undertakers concerned notice in writing of their intention so to do accompanied by a plan and section of the intended alteration and the undertakers may (and if reasonably so required by the Corporation shall) alter the position of the apparatus to such other position in—

(i) the carriageway or footway; or

(ii) the grass margin or garden (if any) as altered;

as may be reasonable:

- (4) The undertakers shall within twenty-eight days from the receipt of a notice from the Corporation pursuant to paragraph (3) of this section give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of that paragraph and shall at the same time deliver to the Corporation a plan and section of the proposed alteration. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be approved:
- (5) Whenever the Corporation in the exercise of the powers of section 11 (Adjustment of boundaries of streets) of this Act shall give up land forming part of a street in

PART X
—cont.

exchange for other land and there is in such first-mentioned land any apparatus the Corporation shall give notice in writing to the undertakers of such exchange with a plan showing the position and dimensions of the portion of the street so exchanged and the undertakers shall notwithstanding any agreement entered into under the said section continue to have the same powers and rights in respect of any apparatus remaining in the land previously forming the site of the street as if such land had continued to be part of the street or the undertakers may and if reasonably so required by the Corporation shall alter the position of such apparatus to such other position in the street as altered under the said powers as may be reasonable:

- (6) The Corporation shall repay to the undertakers the reasonable expenses incurred by the undertakers of or in connection with the alteration of the position of any apparatus under paragraphs (3) and (5) of this section and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that if the undertakers provide and lay or place apparatus of greater dimensions (other than length) or of greater capacity than those of the existing apparatus the undertakers shall bear such proportion of the cost of such provision and laying or placing as represents the amount by which such cost exceeds the cost which would have been incurred if the dimensions or the capacity of the apparatus so laid or placed had been the same as those of the existing apparatus:

- (7) (a) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to the arbitration;
- (b) In settling any difference under this section the arbitrator shall if he thinks fit require the Corporation to execute

any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

PART X
—cont.

87. For the protection of the Wales Gas Board (in this section referred to as “the undertakers”) the following provisions shall unless otherwise agreed in writing between the Corporation and the undertakers apply and have effect:—

(1) In this section unless the subject or context otherwise requires—

“apparatus” means mains pipes or other apparatus belonging to or maintained by the undertakers and includes any works constructed for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under over across along or upon;

“position” includes depth:

(2) Nothing in the following sections of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said sections and the Corporation shall so exercise those powers as not to obstruct or (so far as is reasonably practicable) render less convenient the access to any apparatus:—

Section 8 (Development of land);

Section 13 (Decorations in streets);

Section 40 (Transmission of entertainments):

(3) Not less than twenty-eight days before the Corporation—

(a) in the exercise of the powers of section 9 (Rounding or splaying off corners at street junctions) of this Act require the addition to the carriageway of a street of any portion of a footway or grass margin or garden; or

(b) in the exercise of the powers of section 10 (Variation of width of carriageways and footways) of this Act add to the carriageway of a street any portion of a footway;

in which any apparatus is situate the Corporation shall give to the undertakers notice in writing of their intention so to do accompanied by a plan and section of the intended alteration and the undertakers may (and if reasonably so required by the Corporation shall) alter the position of the apparatus to such other position in—

(i) the carriageway or footway; or

(ii) the grass margin or garden (if any) as altered;

as may be reasonable:

PART X
—cont.

- (4) The undertakers shall within twenty-eight days from the receipt of a notice from the Corporation pursuant to paragraph (3) of this section give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of that paragraph and shall at the same time deliver to the Corporation a plan and section of the proposed alteration. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be approved:
- (5) Whenever the Corporation in the exercise of the powers of section 11 (Adjustment of boundaries of streets) of this Act shall give up land forming part of a street in exchange for other land and there is in such first-mentioned land any apparatus the Corporation shall give notice in writing to the undertakers of such exchange with a plan showing the position and dimensions of the portion of the street so exchanged and the undertakers shall notwithstanding any agreement entered into under the said section continue to have the same powers and rights in respect of any apparatus remaining in the land previously forming the site of the street as if such land had continued to be part of the street or the undertakers may and if reasonably so required by the Corporation shall alter the position of such apparatus to such other position in the street as altered under the said powers as may be reasonable:
- (6) Nothing in the following sections of this Act shall authorise the Corporation to enter on or to execute any works or to do any other thing in under or upon any operational land within the meaning of the Act of 1947 of the undertakers without the consent of the undertakers but such consent shall not be unreasonably withheld:—
- Section 21 (Delegation of power to examine and test drains etc.);
- Section 22 (Summary power to remedy stopped-up drains etc.);
- Section 23 (Power to repair drains and private sewers);
- Section 28 (Ruinous and dilapidated buildings and neglected sites);
- Section 30 (Dangerous structures):
- (7) The Corporation shall repay to the undertakers the reasonable expenses incurred by the undertakers of or in

connection with the alteration of the position of any apparatus under paragraphs (3) and (5) of this section and the reasonable costs of and incidental to—

PART X
—cont.

(i) cutting off of any apparatus from any other apparatus;

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that if the undertakers provide and lay or place apparatus of greater dimensions (other than length) or of greater capacity than those of the existing apparatus the undertakers shall bear such proportion of the cost of such provision and laying or placing as represents the amount by which such cost exceeds the cost which would have been incurred if the dimensions or the capacity of the apparatus so laid or placed had been the same as those of the existing apparatus:

(8) (a) Any difference which may arise between the Corporation and the undertakers under this section (other than a difference as to the meaning or construction of this section which does not arise in the course of the arbitration) shall be referred to and determined by an arbitrator to be agreed upon between the parties or in default of such agreement appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to the arbitration;

(b) In settling any difference under this section the arbitrator shall if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

88. The enactments referred to in the Fourth Schedule to this Repeal Act are hereby repealed.

89. All the costs charges and expenses preliminary to and Costs of Act. of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act.

SCHEDULES

FIRST SCHEDULE

Sections 16 and
17.

APPORTIONMENT AND RECOVERY OF EXPENSES OF CONSTRUCTING SEWERS

1. The sum apportionable shall not exceed the sum certified by the surveyor to be at the relevant date the average cost per lineal yard of providing a public sewer having an internal diameter of nine inches in a private street in the borough multiplied by the extent in lineal yards (as so certified) of the sewer or length of sewer in question.

2. The expenses incurred by the Corporation not exceeding the sum so apportionable shall be apportioned by the Corporation on the premises fronting adjoining or abutting on the street or part of the street in question according to the frontages of the respective premises as existing at the relevant date:

Provided that no sum shall be apportioned on any premises in contravention of any agreement between the Corporation and the owner of the premises and any sum which but for this proviso would have been apportioned on any premises shall be deducted from the aggregate sum to be apportioned under this paragraph.

3. As soon as the apportionment has been made the Corporation shall serve on the owners of the several premises affected notice of the sums respectively apportioned to them and the notice shall state the right of appeal conferred by the next following paragraph.

4. Any person aggrieved by an apportionment under this schedule may appeal to a magistrates' court and may on the appeal dispute the correctness of the surveyor's certificate as well as any other matter affecting the validity or correctness of the apportionment.

5. If the court finds on any such appeal that the aggregate sum apportioned is excessive or that the apportionment thereof is erroneous the court—

(a) shall order the Corporation to revise not only the sum apportioned to the appellant but also the sums apportioned to the owners of the other premises affected and to submit the revised apportionment to the court for approval; and

(b) may if satisfied that the owners of all premises affected have had due notice of the proceedings and an opportunity of being heard approve any such revised apportionment either without amendment or with such amendments as it thinks just.

6. Whenever a new building requiring foul water drainage is erected after the relevant date on any premises on which a sum has been or is thereafter apportioned under this schedule that sum shall be recoverable by the Corporation subject to and in accordance with the following provisions:—

(a) The said sum shall be recoverable to an extent proportionate to the frontage on the street or part of the street of the site of the new building and the land occupied therewith:

Provided that where a sum has become payable under sub-paragraph (c) of this paragraph in respect of the frontage

of the site of a new building and land occupied therewith no further sum shall be recoverable in respect of the same length of frontage or any part thereof by reason of the erection of another new building on that site or that land;

(b) At any time after whichever of the following events last occurs (that is to say):—

(i) the erection of the new building; or

(ii) the expiration of the time for appealing against the apportionment or if an appeal is brought within that time the final determination of the appeal;

the Corporation may serve on the owner for the time being of the new building a demand for payment of the amount recoverable together with interest thereon from the date of the demand:

Provided that where the drains of the new building are at the time of its erection made to communicate with a sewer other than the sewer the expenses of the construction of which are apportioned no such demand shall be served in respect of the building unless and until the drains thereof are made to communicate with the last-mentioned sewer;

(c) As from the date of the service of the said demand the amount recoverable together with interest thereon from that date until payment thereof shall be payable by the owner on whom the demand is served and shall be charged on the new building and the land occupied therewith and on all estates and interests therein;

(d) The rate of interest chargeable under this paragraph shall be such rate as the Corporation may determine not exceeding the maximum rate fixed by the Minister for the purpose of section 291 of the Act of 1936 at the time when the said demand is served or if different maximum rates are then so fixed the highest of those rates.

7.—(1) If any person from whom any sum becomes recoverable under the last foregoing paragraph proves that by reason of the length of frontage of the land occupied with the building in respect of which the sum is so recoverable the amount of that sum is disproportionate to the benefit accruing to the premises the Corporation may remit such part of that sum as they may think just but in that event if another new building is subsequently erected on the said land the said paragraph shall apply to that other building as if the first-mentioned building had not been erected:

Provided that the amount recoverable in respect of that other building shall not exceed the amount remitted.

(2) Any person aggrieved by a decision of the Corporation with respect to any such remission may appeal to a magistrates' court.

8.—(1) The sum apportioned on any premises under this schedule shall for the purposes of section 15 of the Land Charges Act 1925 as amended by the Law of Property (Amendment) Act 1926 be deemed to be a charge on the premises notwithstanding that it is not immediately recoverable.

1ST SCH.
—cont.

(2) Where the whole or part of the sum so deemed to be a charge (hereafter in this sub-paragraph referred to as “the provisional charge”) becomes actually charged on the whole or part of the premises under the foregoing provision of this schedule—

- (a) within fourteen days the registration of the provisional charge under the said section 15 shall be cancelled and the actual charge shall be registered under that section as from the date on which the provisional charge was registered;
- (b) where a part only of the said sum has become actually charged on a part of the premises the remainder of that sum shall be deemed to be a charge on the remainder of the premises notwithstanding that it is not immediately recoverable and shall be registered accordingly within the said fourteen days under the said section as from the said date and the foregoing provisions of this sub-paragraph shall apply thereto accordingly.

9. For the purposes of this schedule—

- (a) a building shall be deemed to be a new building erected after the relevant date unless its erection was completed before that date;
- (b) the following alterations and extensions shall be deemed to be the erection of a new building (that is to say):—
 - (i) the re-erection wholly or partially of any building of which an outer wall is pulled down (otherwise than in consequence of fire or other accident) either completely or to such an extent that the part of that wall remaining is less than half the previous height of the building (the height being measured from ground level to the highest point of the building);
 - (ii) the conversion into a house of any building not originally constructed for human habitation;
 - (iii) the conversion of any premises into a factory shop or place of public resort;
 - (iv) any extension by reason whereof the area occupied by the site of the building will (with any previous extension made since the relevant date) be increased by an area of more than one-eighth or in the case of a building constructed for agricultural purposes one-quarter of that occupied by the site of the building before that date;
- (c) the expression “the relevant date” means—
 - (i) in relation to an apportionment under section 16 (Recovery of expenses of sewerage public highway) of this Act in pursuance of a resolution of the council the date when the resolution became operative; and
 - (ii) in relation to an apportionment under section 17 (Recovery of expenses of sewerage prospective street) of this Act in respect of land becoming a street the date on which the street was laid out.

SECOND SCHEDULE

Section 49.

PROVISIONS AS TO BONDS

1. Bonds shall be issued in such amounts in denominations of five pounds and multiples of five pounds and for such periods not being less than seven years as the Corporation may determine.

2. (a) Bonds may be issued at such price and at such rates of interest as the Corporation may from time to time determine:

Provided that bonds shall not be issued at a price lower than par except with the consent of the Minister.

(b) The nominal amount of bonds issued shall not exceed in the aggregate according to the price of issue such amounts as will together produce the actual amount of money for the time being authorised to be borrowed by the Corporation.

(c) Where a bond has been issued at a price lower than par so much of the issue as represents the difference between the price of the bond as issued and its nominal value shall be treated as a loan authorised by a statutory borrowing power and repayable out of the revenues of the Corporation on or before the date for repayment specified in the certificate issued in respect of the bond.

3. Bonds shall be repayable at par (unless the same shall have been previously cancelled by purchase in the open market or by agreement with the bondholder) at the place and on the dates specified in the certificates issued in respect of the bonds and no interest shall be payable thereon in respect of any period after the date upon which the bond is repayable.

4.—(1) The treasurer shall keep a register of all persons who are holders for the time being of bonds.

(2) The register shall contain the following particulars:—

(a) the name and address and description of each holder a statement of the denomination of the bonds held by him the price at which and the periods for which they are issued and the numbers and dates of the certificates issued to him as hereinafter provided;

(b) the date of registration of each holder and the date on which he ceased to be so registered.

(3) The register shall be prima facie evidence of any matter entered therein in accordance with the provisions of this Act and of the title of the persons entered therein as holders of bonds.

5.—(1) The Corporation shall issue to each holder of a bond a certificate in respect thereof duly numbered and dated and specifying the denomination of the bond and the period for which it is issued.

(2) If a certificate is worn out or damaged the Corporation on the production thereof may cancel it and issue a new certificate in lieu thereof.

(3) If a certificate is lost or destroyed the Corporation on proof thereof to their satisfaction and if they so require on receiving an indemnity against any claims in respect thereof may give a new certificate in lieu of the certificate lost or destroyed.

2ND SCH.
—cont.

(4) An entry of the issue of a substituted certificate shall be made in the register.

(5) A certificate shall be in the following form or in a form substantially to the like effect:—

No.

Date

Barry Corporation

..... per centum bond

repayable at par on the 19

at

This is to certify that

of

is the registered holder of a

bond for

pounds (£

) issued

by the Barry Corporation under the Barry Corporation Act 1957 at

The corporate seal of the mayor
aldermen and burgesses of the
borough of Barry was hereunto
affixed in the presence of

Mayor

Town clerk

6. The certificate shall be prima facie evidence of the title of the person therein named his executors administrators or assigns to the bond therein specified but the want of a certificate if accounted for to the satisfaction of the Corporation shall not prevent the holder of the bond from disposing of and transferring the bond.

7.—(1) The transfer of a bond shall be by deed in the following form or in a form substantially to the like effect:—

FORM OF DEED OF TRANSFER

I

in consideration of the sum of
paid by

(hereinafter called “the transferee”) do hereby assign
and transfer to the transferee

To hold unto the transferee his executors administrators
and assigns subject to the several conditions on which I
held the same immediately before the execution hereof

And I the transferee do hereby agree to accept and take the
said subject to the

conditions aforesaid

As witness our hands and seals this day of
nineteen hundred and

(2) A bond may be transferred in whole or in part so however that any part transferred shall not be for an amount other than an amount for which a bond may be issued by the Corporation.

(3) The deed of transfer shall be delivered to and retained by the Corporation and the Corporation shall enter a note thereof in a book

to be called the "Register of transfers of bonds" and shall endorse on the deed of transfer a notice of that entry.

2ND SCH.
—cont.

(4) The Corporation shall upon receipt of the deed of transfer duly executed and properly stamped together with the certificate issued in respect of the bond enter the name of the transferee in the register and shall issue a new certificate or certificates to the transferee or to the transferor and transferee as the case may require.

(5) Until the deed of transfer and the certificate have been delivered to the Corporation as aforesaid the Corporation shall not be affected by the transfer and the transferee shall not be entitled to receive any payment of interest on the bond.

(6) The Corporation before registering a transfer of a bond may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming to make the transfer.

8. The Corporation may close the register for a period not exceeding thirty days immediately before the date for the payment of any interest on the bonds and notwithstanding the receipt by the Corporation during those periods of any deed of transfer the payment of interest next falling due may be made to the persons registered as holders of the bonds on the date of the closing of the register.

9.—(1) Any person becoming entitled to a bond by reason of the death or bankruptcy of a holder or by any lawful means other than a transfer may by the production of such evidence of title as the Corporation may require either be registered as holder of the bond or instead of being himself registered may make such transfer of the bond as the holder could have made and the Corporation shall issue a certificate accordingly.

(2) Until such evidence as aforesaid has been furnished to the Corporation they shall not be affected by the transmission of the bond and no person claiming by virtue thereof shall be entitled to receive any payment of interest thereon.

(3) Where two or more persons are registered as holders of a bond they shall be deemed to be joint holders with right of survivorship between them.

10. The Corporation before paying any interest on any bonds may if they think fit require evidence by statutory declaration or otherwise of the title of any person claiming a right to receive the interest.

11.—(1) Unless the holder of a bond otherwise requests the Corporation may pay the interest thereon by posting a warrant to the holder at his address as shown on the register.

(2) The posting by the Corporation of an interest warrant addressed to a holder as aforesaid shall as respects the liability of the Corporation be equivalent to the delivery of the warrant to the holder himself.

12. The production to the Corporation of any document which is by law sufficient evidence of probate of the will or letters of administration of the estate or confirmation as executor of a deceased person having been granted to some person shall notwithstanding anything in this schedule be accepted by the Corporation as sufficient evidence of the grant.

Section 81.

THIRD SCHEDULE

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED

PART I

SECTIONS APPLIED GENERALLY

Section	Marginal note
271	Interpretation of "provide".
283	Notices to be in writing; forms of notices &c.
284	Authentication of documents.
285	Service of notices &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
297	Continuing offences and penalties.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.

PART II

SECTIONS APPLIED TO PARTS III IV AND V OF THIS ACT

Section	Marginal note
275	Power of local authority to execute certain work on behalf of owners or occupiers.
276	Power of local authority to sell certain materials.
277	Power of councils to require information as to ownership of premises.
287	Power to enter premises.
289	Power to require occupier to permit works to be executed by owner.
291	Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments.
293	Recovery of expenses &c.
294	Limitation of liability of certain owners.
295	Power of local authority to grant charging orders.
299	Inclusion of several sums in one complaint &c.
329	Saving for certain provisions of the Land Charges Act 1925.

Section 88.

FOURTH SCHEDULE

ENACTMENTS REPEALED

Barry and Cadoxton Local Board (Gas and Water) Act 1893—
 Section 25 (Regulations for preventing waste of water);
 Section 45 (Application of water revenue).

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Towns Improvement Clauses Act 1847 ...	10 & 11 Vict. c. 34.
Telegraph Act 1869	32 & 33 Vict. c. 73.
Public Health Act 1875	38 & 39 Vict. c. 55.
Local Loans Act 1875	38 & 39 Vict. c. 83.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Electric Lighting Act 1882	45 & 46 Vict. c. 56.
Public Health Acts Amendment Act 1890 ...	53 & 54 Vict. c. 59.
Stamp Act 1891	54 & 55 Vict. c. 39.
Finance Act 1899	62 & 63 Vict. c. 9.
Open Spaces Act 1906	6 Edw. 7 c. 25.
Public Health Acts Amendment Act 1907 ...	7 Edw. 7 c. 53.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5 c. 57.
Land Charges Act 1925	15 Geo. 5 c. 22.
Rating and Valuation Act 1925	15 & 16 Geo. 5 c. 90.
Law of Property (Amendment) Act 1926 ...	16 & 17 Geo. 5 c. 11.
Local Government Act 1929	19 & 20 Geo. 5 c. 17.
Local Government Act 1933	23 & 24 Geo. 5 c. 51.
Housing Act 1935	25 & 26 Geo. 5 c. 40.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Housing Act 1936	26 Geo. 5 & 1 Edw. 8 c. 51.
Ministers of the Crown (Transfer of Functions) Act 1946	9 & 10 Geo. 6 c. 31.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6 c. 51.
Local Government Act 1948	11 & 12 Geo. 6 c. 26.
National Assistance Act 1948	11 & 12 Geo. 6 c. 29.
Lands Tribunal Act 1949	12 & 13 Geo. 6 c. 42.
Wireless Telegraphy Act 1949	12 & 13 Geo. 6 c. 54.
Civil Aviation Act 1949	12 & 13 Geo. 6 c. 67.
Public Utilities Street Works Act 1950 ...	14 Geo. 6 c. 39.
Magistrates' Courts Act 1952	15 & 16 Geo. 6 & 1 Eliz. 2 c. 55.
Town and Country Planning Act 1954 ...	2 & 3 Eliz. 2 c. 72.
Rating and Valuation (Miscellaneous Provisions) Act 1955	4 Eliz. 2 c. 9.

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